

		<u>Finally, the court directs the clerk to confirm the case title, register of actions, docket, list of parties, and court index accurately reflect Lucila Barocio is the payee and real party in interest in this case, and to the extent necessary, correct those records to accurately reflect the parties to this action.</u> Petitioner's counsel is ordered to give notice.
5.	<i>In re 8860 La Salle St. 4, Cypress, CA 90630</i> 2026-01554689	OFF CALENDAR based on request for dismissal filed on June 9, 2026.
6.	<i>In Re: 509 Ventaja, Newport Beach, CA 92660</i> 2025-01521014	Before the court are two competing claims to \$74,259.90 in surplus funds (Surplus Funds) from the proceeds of a foreclosure sale of real property located at 509 Ventaja, Newport Beach, California 92660 (Property). The two claims the court received were filed by (1) Radonix, Inc. seeking \$144,999.61, and (2) the California Employment Development Department (EDD) seeking \$18,784.44. The Surplus Funds were deposited with the court on March 17, 2026, by petitioner Prestige Default Services, LLC (Petitioner), and Petitioner was thereafter discharged of any further responsibility for the distribution of the Surplus Funds as provided by Civil Code section 2924j. As such, the only remaining issue in this matter is the resolutions of the competing claims to the Surplus Funds. Civil Code section 2924k establishes the priority pursuant to which the Surplus Funds are to being distributed following the costs and expenses of the foreclosure sale and the satisfaction of the obligation on which the foreclosure sale was based. Specifically, following those two items, the Surplus Funds are to be distributed to any junior lien encumbrances in order of their priority followed by the trustors. (Civ. Code, § 2924k, subd. (a).) "California follows the 'first in time, first in right' system of lien priorities. ([Civ. Code,] § 2897.)" [Citation.] However, that rule is not without exceptions. 'Other things being equal, different liens upon the same property have priority according to the time of their creation' (Civ. Code, § 2897.)" (<i>JP Morgan Chase Bank, N.A. v. Banc of Am. Prac. Sols., Inc.</i> (2012) 209 Cal.App.4th 855, 860.) On April 9, 2026, Radonix and EDD filed a stipulation and proposed order agreeing to the respective priority of their claims, and requesting the court distribute the Surplus Funds in accordance with their stipulation and proposed